

that the paragraphs listing the facts which comprise Balcal’s liability in Giraudos’ November 21, 2023 Cross-Complaint (Paragraph 14) and Giraudos’ FAC (Paragraph 15) are substantially similar. Facts alleged in the November 21, 2023 Cross-Complaint have been an available subject of discovery since 2023. Thus, to the extent the same facts comprise the Giraudos’ FAC, the order reopening discovery in 2025 was not intended to apply thereto.

Giraudos appear to concede that the RFAs pertain to the construction work and change orders. (See Mem. 11:12-14.) They argue that those RFAs are still relevant to the third element for elder abuse which requires Giraudos to demonstrate Balcal’s conduct was for wrongful use, with intent to defraud, or through undue influence. (Mem., 11:14-16; Reply, 3:9-19.) Giraudos additionally argue that Balcal has failed to meet its burden by failing to explain why the RFAs are irrelevant to the elder abuse claim.

Balcal makes clear that the issue is less about the relevance of the RFAs to the elder abuse claim, and more about the fact that discovery closed as to issues predating Giraudos’ FAC. (See Opp., 5:25-6:2.) Balcal contends that the subject discovery requests are “principally similar to discovery that has been ongoing for nearly three years of litigation.” (*Id.*, 6:5-7.) Thus, Giraudos’ RFAs are “an improper attempt to circumvent the discovery cutoff and the limited scope of discovery remaining in this action.” (*Id.*, 6:3-5.)

The Court finds that Balcal has met its burden to justify its objection on the ground that the scope of the subject discovery exceeds the scope allowed by the Court’s October 7, 2025 Order for “elder abuse.” Again, the order reopening discovery was not intended to reopen discovery as to issues that were active in this case from its inception. Rather, the purpose was to allow discovery into areas that only became available upon the filing of the newly-asserted elder abuse claim. The fact that Balcal’s wrongdoing is a fact at issue for elder abuse does not reopen discovery into that general alleged wrongdoing, upon which the case has been based since Giraudos’ Cross-Complaint filed in 2023. Notably, the order reopening discovery did not allow for discovery regarding Giraudos’ newly-asserted embezzlement claim, which asserts the same wrongful conduct by Balcal as that included in Giraudos’ elder abuse claim. (Giraudos’ FAC, ¶¶ 26-28, 44-46.)

Based on the foregoing, the Motion is DENIED. Giraudos’ request for sanctions is therefore DENIED.

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Caroline Geitner v. Tia Sonesouphab et al

24CV002118

MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS TO DEFENDANT'S REQUESTS FOR SPECIAL INTERROGATORIES

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Caroline Geitner moves, pursuant to California Code of Civil procedure 2030.290, subdivision (a), for relief from waiver of objections to Defendant ST. Joseph Health Northern California, LLC.'s Special Interrogatories (Set Two).

The Court finds, from the evidence presented, that Ms. Geitner has served a response that is in substantial compliance with the relevant provisions of the Civil Discovery Act, and that her failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a).) This Order is without prejudice to Defendant's right to file a motion to compel discovery should it determine such a motion is necessary.

The Motion is, therefore, GRANTED.

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Melissa Castellucci v. Peju Family Operating Partnership, LP

25CV000098

PLAINTIFF'S MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND
PAGE SETTLEMENT

TENTATIVE RULING: The motion for preliminary approval of class action settlement is GRANTED. The Court will sign the proposed order. The matter is set for a Final Approval Hearing on January 5, 2027 at 8:30 a.m. in Dept. A. The December 15, 2026 OSC is VACATED.